

STATE OF NEW YORK

7975--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 16, 2025

Introduced by M. of A. JONES -- read once and referred to the Committee on Governmental Employees -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the retirement and social security law, in relation to establishing an optional twenty-five year retirement plan for certain employees of the New York Power Authority

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The retirement and social security law is amended by adding
2 a new section 89-z to read as follows:

3 § 89-z. Retirement of certain employees employed by the New York power
4 authority. a. Any person who is employed by the New York power authority
5 and is a member of the labor organization certified or recognized to
6 represent the employees of such power authority shall be eligible to
7 retire pursuant to the provisions of this section. Such eligibility
8 shall be an alternative to the eligibility provisions available under
9 any other plan of this article to which such member is subject.

10 b. Such member shall be entitled to retire upon the completion of
11 twenty-five years of total creditable service by filing an application
12 therefor in the manner provided for in section seventy of this article.

13 c. Upon completion of twenty-five years of such service and upon
14 retirement, each such member shall receive a pension which, together
15 with an annuity which shall be the actuarial equivalent of such member's
16 accumulated contributions at the time of their retirement and an addi-
17 tional pension which is the actuarial equivalent of the reserved-for-in-
18 creased-take-home-pay to which such member may then be entitled shall be
19 sufficient to provide such member with a retirement allowance equal to
20 fifty percent of such member's final average salary.

21 d. Notwithstanding section forty-one of this article, as used in this
22 section "creditable service" shall include any and all services
23 performed as an employee of the New York power authority.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 e. A member, contributing on the basis of this section at the time of
2 retirement, shall retire after the completion of twenty-five years of
3 total creditable service. Application therefor may be filed in a manner
4 similar to that provided in section seventy of this article. Upon
5 completion of twenty-five years of such service and upon retirement,
6 each such member shall receive a pension which, together with an annuity
7 which shall be the actuarial equivalent of such member's accumulated
8 contributions at the time of their retirement and an additional pension
9 which is the actuarial equivalent of the reserve-for-increased-take-
10 home-pay to which such member may then be entitled shall be sufficient
11 to provide such member with a retirement allowance equal to fifty
12 percent of such member's final average salary.

13 f. In computing the twenty-five years of total service of a member
14 pursuant to this section full credit shall be given and full allowance
15 shall be made for service of such member in time of war after World War
16 I as defined in section two of this chapter, provided such member at the
17 time of such member's entrance into the armed forces was in state
18 service.

19 g. Nothing herein shall be construed to prevent a member, who does not
20 retire pursuant to the provisions of this section, from utilizing
21 service which is creditable service pursuant to the provisions of this
22 section for service credit pursuant to the provisions of any other plan
23 of this article to which such member is subject.

24 h. The provisions of this section shall be controlling notwithstanding
25 any other provision in this article to the contrary.

26 § 2. Subdivision a of section 445 of the retirement and social securi-
27 ty law, as amended by chapter 714 of the laws of 2023, is amended to
28 read as follows:

29 a. No member of a retirement system who is subject to the provisions
30 of this article shall retire without regard to age, exclusive of retire-
31 ment for disability, unless ~~[he or she]~~ such member is a police officer,
32 an investigator member of the New York city employees' retirement
33 system, firefighter, correction officer, a qualifying member as defined
34 in section eighty-nine-t, as added by chapter six hundred fifty-seven of
35 the laws of nineteen hundred ninety-eight, of this chapter, sanitation
36 worker, a special officer (including persons employed by the city of New
37 York in the title urban park ranger or associate urban park ranger),
38 school safety agent, campus peace officer or a taxi and limousine
39 commission inspector member of the New York city employees' retirement
40 system or the New York city board of education retirement system, a
41 dispatcher member of the New York city employees' retirement system, a
42 police communications member of the New York city employees' retirement
43 system, an EMT member of the New York city employees' retirement system,
44 a deputy sheriff member of the New York city employees' retirement
45 system, a correction officer of the Westchester county correction
46 department as defined in section eighty-nine-e of this chapter or
47 employed in Suffolk county as a peace officer, as defined in section
48 eighty-nine-s, as added by chapter five hundred eighty-eight of the laws
49 of nineteen hundred ninety-seven, of this chapter, employed in Suffolk
50 county as a correction officer, as defined in section eighty-nine-f of
51 this chapter, or employed in Nassau county as a correction officer,
52 uniformed correction division personnel, sheriff, undersheriff or deputy
53 sheriff, as defined in section eighty-nine-g of this chapter, or
54 employed in Nassau county as an ambulance medical technician, an ambu-
55 lance medical technician/supervisor or a member who performs ambulance
56 medical technician related services, or a police medic, police medic

1 supervisor or a member who performs police medic related services, as
2 defined in section eighty-nine-s, as amended by chapter five hundred
3 seventy-eight of the laws of nineteen hundred ninety-eight, of this
4 chapter, or employed in Nassau county as a peace officer, as defined in
5 section eighty-nine-s, as added by chapter five hundred ninety-five of
6 the laws of nineteen hundred ninety-seven, of this chapter, or employed
7 in Albany county as a sheriff, undersheriff, deputy sheriff, correction
8 officer or identification officer, as defined in section eighty-nine-h
9 of this chapter or is employed in St. Lawrence county as a sheriff,
10 undersheriff, deputy sheriff or correction officer, as defined in
11 section eighty-nine-i of this chapter or is employed in Orleans county
12 as a sheriff, undersheriff, deputy sheriff or correction officer, as
13 defined in section eighty-nine-l of this chapter or is employed in
14 Jefferson county as a sheriff, undersheriff, deputy sheriff or
15 correction officer, as defined in section eighty-nine-j of this chapter
16 or is employed in Onondaga county as a deputy sheriff-jail division
17 competitively appointed or as a correction officer, as defined in
18 section eighty-nine-k of this chapter or is employed in a county which
19 makes an election under subdivision j of section eighty-nine-p of this
20 chapter as a sheriff, undersheriff, deputy sheriff or correction officer
21 as defined in such section eighty-nine-p or is employed in Broome County
22 as a sheriff, undersheriff, deputy sheriff or correction officer, as
23 defined in section eighty-nine-m of this chapter or is a Monroe county
24 deputy sheriff-court security, or deputy sheriff-jailor as defined in
25 section eighty-nine-n, as added by chapter five hundred ninety-seven of
26 the laws of nineteen hundred ninety-one, of this chapter or is employed
27 in Greene county as a sheriff, undersheriff, deputy sheriff or
28 correction officer, as defined in section eighty-nine-o of this chapter
29 or is a traffic officer with the town of Elmira as defined in section
30 eighty-nine-q of this chapter or is employed by Suffolk county as a park
31 police officer, as defined in section eighty-nine-r of this chapter or
32 is a peace officer employed by a county probation department as defined
33 in section eighty-nine-t, as added by chapter six hundred three of the
34 laws of nineteen hundred ninety-eight, of this chapter or is employed in
35 Rockland county as a deputy sheriff-civil as defined in section eighty-
36 nine-v of this chapter as added by chapter four hundred forty-one of the
37 laws of two thousand one, or is employed in Rockland county as a superi-
38 or correction officer as defined in section eighty-nine-v of this chap-
39 ter as added by chapter five hundred fifty-six of the laws of two thou-
40 sand one or is a paramedic employed by the police department in the town
41 of Tonawanda and retires under the provisions of section eighty-nine-v
42 of this chapter, as added by chapter four hundred seventy-two of the
43 laws of two thousand one, or is a county fire marshal, supervising fire
44 marshal, fire marshal, assistant fire marshal, assistant chief fire
45 marshal, chief fire marshal, division supervising fire marshal or fire
46 marshal trainee employed by the county of Nassau as defined in section
47 eighty-nine-w of this chapter or is employed in Monroe county as a depu-
48 ty sheriff-civil as defined in section eighty-nine-x of this chapter,
49 employed as an emergency medical technician, critical care technician,
50 advanced emergency medical technician, paramedic or supervisor of such
51 titles in a participating Suffolk county fire district as defined in
52 section eighty-nine-ss of this chapter, or is employed by the New York
53 power authority and is a member of the labor organization certified or
54 recognized to represent the employees of such power authority as defined
55 in section eighty-nine-z of this chapter and is in a plan which permits
56 immediate retirement upon completion of a specified period of service

1 without regard to age. Except as provided in subdivision c of section
2 four hundred forty-five-a of this article, subdivision c of section four
3 hundred forty-five-b of this article, subdivision c of section four
4 hundred forty-five-c of this article, subdivision c of section four
5 hundred forty-five-d of this article, subdivision c of section four
6 hundred forty-five-e of this article, subdivision c of section four
7 hundred forty-five-f of this article and subdivision c of section four
8 hundred forty-five-h of this article, a member in such a plan and such
9 an occupation, other than a police officer or investigator member of the
10 New York city employees' retirement system or a firefighter, shall not
11 be permitted to retire prior to the completion of twenty-five years of
12 credited service; provided, however, if such a member in such an occupa-
13 tion is in a plan which permits retirement upon completion of twenty
14 years of service regardless of age, ~~[he or she]~~ such member may retire
15 upon completion of twenty years of credited service and prior to the
16 completion of twenty-five years of service, but in such event the bene-
17 fit provided from funds other than those based on such a member's own
18 contributions shall not exceed two per centum of final average salary
19 per each year of credited service.

20 § 3. Subdivision a of section 445 of the retirement and social securi-
21 ty law, as amended by section 2 of part TT of chapter 55 of the laws of
22 2025, is amended to read as follows:

23 a. No member of a retirement system who is subject to the provisions
24 of this article shall retire without regard to age, exclusive of retire-
25 ment for disability, unless they are a police officer, an investigator
26 member of the New York city employees' retirement system, firefighter,
27 correction officer, a qualifying member as defined in section eighty-
28 nine-t, as added by chapter six hundred fifty-seven of the laws of nine-
29 teen hundred ninety-eight, of this chapter, sanitation worker, a special
30 officer (including persons employed by the city of New York in the title
31 urban park ranger or associate urban park ranger), school safety agent,
32 campus peace officer or a taxi and limousine commission inspector member
33 of the New York city employees' retirement system or the New York city
34 board of education retirement system, a dispatcher member of the New
35 York city employees' retirement system, a police communications member
36 of the New York city employees' retirement system, an EMT member of the
37 New York city employees' retirement system, a deputy sheriff member of
38 the New York city employees' retirement system, a correction officer of
39 the Westchester county correction department as defined in section
40 eighty-nine-e of this chapter or employed in Suffolk county as a peace
41 officer, as defined in section eighty-nine-s, as added by chapter five
42 hundred eighty-eight of the laws of nineteen hundred ninety-seven, of
43 this chapter, employed in Suffolk county as a correction officer, as
44 defined in section eighty-nine-f of this chapter, or employed in Nassau
45 county as a correction officer, uniformed correction division personnel,
46 sheriff, undersheriff or deputy sheriff, as defined in section eighty-
47 nine-g of this chapter, or employed in Nassau county as an ambulance
48 medical technician, an ambulance medical technician/supervisor or a
49 member who performs ambulance medical technician related services, or a
50 police medic, police medic supervisor or a member who performs police
51 medic related services, as defined in section eighty-nine-s, as amended
52 by chapter five hundred seventy-eight of the laws of nineteen hundred
53 ninety-eight, of this chapter, or employed in Nassau county as a peace
54 officer, as defined in section eighty-nine-s, as added by chapter five
55 hundred ninety-five of the laws of nineteen hundred ninety-seven, of
56 this chapter, or employed in Albany county as a sheriff, undersheriff,

1 deputy sheriff, correction officer or identification officer, as defined
2 in section eighty-nine-h of this chapter or is employed in St. Lawrence
3 county as a sheriff, undersheriff, deputy sheriff or correction officer,
4 as defined in section eighty-nine-i of this chapter or is employed in
5 Orleans county as a sheriff, undersheriff, deputy sheriff or correction
6 officer, as defined in section eighty-nine-l of this chapter or is
7 employed in Jefferson county as a sheriff, undersheriff, deputy sheriff
8 or correction officer, as defined in section eighty-nine-j of this chap-
9 ter or is employed in Onondaga county as a deputy sheriff-jail division
10 competitively appointed or as a correction officer, as defined in
11 section eighty-nine-k of this chapter or is employed in a county which
12 makes an election under subdivision j of section eighty-nine-p of this
13 chapter as a sheriff, undersheriff, deputy sheriff or correction officer
14 as defined in such section eighty-nine-p or is employed in Broome County
15 as a sheriff, undersheriff, deputy sheriff or correction officer, as
16 defined in section eighty-nine-m of this chapter or is a Monroe county
17 deputy sheriff-court security, or deputy sheriff-jailor as defined in
18 section eighty-nine-n, as added by chapter five hundred ninety-seven of
19 the laws of nineteen hundred ninety-one, of this chapter or is employed
20 in Greene county as a sheriff, undersheriff, deputy sheriff or
21 correction officer, as defined in section eighty-nine-o of this chapter
22 or is a traffic officer with the town of Elmira as defined in section
23 eighty-nine-q of this chapter or is employed by Suffolk county as a park
24 police officer, as defined in section eighty-nine-r of this chapter or
25 is a peace officer employed by a county probation department as defined
26 in section eighty-nine-t, as added by chapter six hundred three of the
27 laws of nineteen hundred ninety-eight, of this chapter or is employed in
28 Rockland county as a deputy sheriff-civil as defined in section eighty-
29 nine-v of this chapter as added by chapter four hundred forty-one of the
30 laws of two thousand one, or is employed in Rockland county as a superi-
31 or correction officer as defined in section eighty-nine-v of this chap-
32 ter as added by chapter five hundred fifty-six of the laws of two thou-
33 sand one or is a paramedic employed by the police department in the town
34 of Tonawanda and retires under the provisions of section eighty-nine-v
35 of this chapter, as added by chapter four hundred seventy-two of the
36 laws of two thousand one, or is a county fire marshal, supervising fire
37 marshal, fire marshal, assistant fire marshal, assistant chief fire
38 marshal, chief fire marshal, division supervising fire marshal or fire
39 marshal trainee employed by the county of Nassau as defined in section
40 eighty-nine-w of this chapter or is employed in Monroe county as a depu-
41 ty sheriff-civil as defined in section eighty-nine-x of this chapter,
42 employed as an emergency medical technician, critical care technician,
43 advanced emergency medical technician, paramedic or supervisor of such
44 titles in a participating Suffolk county fire district as defined in
45 section eighty-nine-ss of this chapter, or is a firefighter apprentice,
46 airport firefighter I, airport firefighter II, airport firefighter III,
47 or training and safety officer employed by the division of military and
48 naval affairs as defined in section eighty-nine-y of this chapter, or is
49 employed by the New York power authority and is a member of the labor
50 organization certified or recognized to represent the employees of such
51 power authority as defined in section eighty-nine-z of this chapter, and
52 is in a plan which permits immediate retirement upon completion of a
53 specified period of service without regard to age. Except as provided in
54 subdivision c of section four hundred forty-five-a of this article,
55 subdivision c of section four hundred forty-five-b of this article,
56 subdivision c of section four hundred forty-five-c of this article,

1 subdivision c of section four hundred forty-five-d of this article,
2 subdivision c of section four hundred forty-five-e of this article,
3 subdivision c of section four hundred forty-five-f of this article and
4 subdivision c of section four hundred forty-five-h of this article, a
5 member in such a plan and such an occupation, other than a police offi-
6 cer or investigator member of the New York city employees' retirement
7 system or a firefighter, shall not be permitted to retire prior to the
8 completion of twenty-five years of credited service; provided, however,
9 if such a member in such an occupation is in a plan which permits
10 retirement upon completion of twenty years of service regardless of age,
11 they may retire upon completion of twenty years of credited service and
12 prior to the completion of twenty-five years of service, but in such
13 event the benefit provided from funds other than those based on such a
14 member's own contributions shall not exceed two per centum of final
15 average salary per each year of credited service.

16 § 4. Section 603 of the retirement and social security law is amended
17 by adding a new subdivision x to read as follows:

18 x. The service retirement benefit specified in section six hundred
19 four of this article shall be payable to members with twenty-five or
20 more years of creditable service, without regard to age, who are
21 employed by the New York power authority and are a member of the labor
22 organization certified or recognized to represent the employees of such
23 power authority, as defined in section eighty-nine-y of this chapter if:
24 (i) such members have met the minimum service requirements upon retire-
25 ment, and (ii) in the case of a member subject to the provisions of
26 article fourteen of this chapter, such member files an election therefor
27 which provides that such member will be subject to the provisions of
28 this article and to none of the provisions of such article fourteen.
29 Such election, which shall be irrevocable, shall be in writing, duly
30 executed and shall be filed with the comptroller within one year of the
31 effective date of this subdivision or within one year of entering into
32 service as an employee of the New York power authority and becoming a
33 member of the labor organization certified or recognized to represent
34 the employees of such power authority. The term "creditable service"
35 shall have the meaning as so defined in section eighty-nine-z of this
36 chapter and subdivision c of section six hundred one of this article.

37 § 5. Subdivision a of section 503 of the retirement and social securi-
38 ty law, as amended by chapter 18 of the laws of 2012, is amended to read
39 as follows:

40 a. The normal service retirement benefit specified in section five
41 hundred four of this article shall be payable to general members, other
42 than elective members, who have met the minimum service requirements
43 upon retirement and attainment of age sixty-two, provided, however, a
44 general member who is a peace officer employed by the unified court
45 system or a member of a teachers' retirement system may retire without
46 reduction of [~~his or her~~] such member's retirement benefit upon attain-
47 ment of at least fifty-five years of age and completion of thirty or
48 more years of service. For members who become members of the New York
49 state and local employees' retirement system on or after April first,
50 two thousand twelve, the normal service retirement benefits specified in
51 section five hundred four of this article shall be payable to general
52 members, other than elective members, who have met the minimum service
53 requirements upon retirement and attainment of age sixty-three; provided
54 that, a member who is an employee of the New York power authority who is
55 a member of the labor organization certified or recognized to represent
56 the employees of such power authority may retire without reduction of

1 such member's retirement benefit upon attainment of twenty-five or more
2 years of service if they have elected the special retirement plan found
3 in section eighty-nine-z of this chapter.

4 § 6. Section 604 of the retirement and social security law is amended
5 by adding a new subdivision x to read as follows:

6 x. The early service retirement for a member who is an employee of the
7 New York power authority and is a member of the labor organization
8 certified or recognized to represent the employees of such power author-
9 ity as defined in section eighty-nine-z of this chapter, shall be a
10 pension equal to one-fiftieth of final average salary times years of
11 service as an employee of the New York power authority who is a member
12 of the labor organization certified or recognized to represent the
13 employees of such power authority, but not exceeding one-half of such
14 member's final average salary.

15 § 7. Notwithstanding any provision of law to the contrary, none of the
16 provisions of this act shall be subject to the appropriation requirement
17 of section twenty-five of the retirement and social security law.

18 § 8. All past service costs associated with implementing the
19 provisions of this act shall be borne by the New York Power Authority.

20 § 9. This act shall take effect immediately; provided, however, that
21 the amendments to section three of this act shall take effect on the
22 same date and in the same manner as section 2 of part TT of chapter 55
23 of the laws of 2025 takes effect.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would permit members of the New York State and Local Employees' Retirement System employed by the New York power authority who are members of the labor organization certified or recognized to represent the employees of such power authority to retire upon completion of twenty-five years of creditable service with a benefit of one-half final average salary. Members covered under Article 14 would be permitted one year to make an irrevocable election to switch to the twenty-five-year plan.

If this bill is enacted during the 2025 Legislative Session, we anticipate that there will be an increase of approximately \$3.0 million in the annual contributions of the New York power authority for the fiscal year ending March 31, 2026. In future years this cost will vary but is expected to average 4.0% of salary annually.

In addition to the annual contributions discussed above, there will be an immediate past service cost of approximately \$15.3 million which will be borne by the New York power authority as a one-time payment. This estimate assumes that payment will be made on February 1, 2026.

These estimated costs are based on 564 affected members employed by the New York power authority, with annual salary of approximately \$58.8 million as of March 31, 2024. The affected members were identified using information provided by the office of Senator Joseph Griffo.

Summary of relevant resources:

Membership data as of March 31, 2024 was used in measuring the impact of the proposed change, the same data used in the April 1, 2024 actuarial valuation. Distributions and other statistics can be found in the 2024 Report of the Actuary and the 2024 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2024 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The Market Assets and GASB Disclosures are found in the March 31, 2024 New York State and Local Retirement System Financial Statements and Supplementary Information.

This fiscal note does not constitute a legal opinion on the viability of the proposed change nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated April 9, 2025, and intended for use only during the 2025 Legislative Session, is Fiscal Note No. 2025-50. As Chief Actuary of the New York State and Local Retirement System, I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member.